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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

(Criminal Jurisdiction)

Date : 15.10.2026

PRESENT

The Hon`ble Mr.Justice K.MURALI SHANKAR

CRL OP(MD) NO. 23550 of 2026

{CNR: HCMD011474992026}

Case QR

Kanagavel Murugan @ Kanagavel

... Petitioner/
Accused No.1

Vs

The State of Tamil Nadu rep by
The Inspector of Police,
Sipcot Police Station,
Thoothukudi District.
(Crime No.683 of 2026)

... Respondent/
Complainant

For Petitioner : Mr.R.J.Karthick,
Advocate

For Respondent : Mr.T.Lenin Kumar,
Additional Public Prosecutor

PETITION FOR BAIL Under Section 483 of B.N.S.S.

PRAYER :-

For Bail in Crime No.683 of 2026 on the file of the Respondent Police.

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ORDER : The Court made the following order :-

The petitioner / first accused, who was arrested and remanded to judicial custody on 27.09.2026 for the offences punishable under Sections 296(b), 49, 109(1), 115(2), 326(g) and 351(3) BNS, in Crime No. 683 of 2026, on the file of the respondent police, seeks bail.

2. The case of the prosecution is that the defacto complainant and the second accused are husband and wife and that the defacto complainant had been residing separately with his two children for the past 1½ years. On 24.09.2026, at about 5.00 p.m., the second accused came to the house of the defacto complainant and asked her son to accompany her. When they refused, she allegedly abused the defacto complainant in filthy language, assaulted the children and damaged the household articles. Thereafter, she allegedly instigated the petitioner, who is her brother, to commit the offence. Accordingly, on the same day, at about 11.45 p.m., the petitioner, along with two other persons, went to

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the house of the defacto complainant's parents and threw a petrol bomb at the gate. When questioned about the same, they allegedly abused his father in filthy language, assaulted him and threatened him with dire consequences. Hence, the complaint.

3. The learned counsel appearing for the petitioner would submit that the petitioner is an innocent and he has not committed any offence as alleged by the prosecution. He would further submit that the petitioner is in judicial custody from 27.09.2026.

4. The learned Additional Public Prosecutor appearing for the respondent police would submit that there are totally 4 accused and the petitioner is arrayed as first accused, that the petitioner had also attacked the injured, that the injured was already discharged from the hospital, that the second accused was granted anticipatory bail by the Principal Sessions Court on 05.10.2026 and that the petitioner is not having any previous cases.

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5. Considering the above facts and circumstances and also the facts that there existed matrimonial dispute between the defacto complainant and the second accused, that the injured was already discharged from the hospital and that the petitioner is not having any bad antecedents, this Court is inclined to grant bail to the petitioner subject to the following conditions:

6. Accordingly, the petitioner is ordered to be released on bail on his executing a bond for a sum of **Rs.25,000/- (Rupees Twenty Five Thousand only)** with two sureties each for a like sum to the satisfaction of the learned Judicial Magistrate No.III, Thoothukudi, and on further conditions that:

(i)the sureties shall affix their photographs and left thumb impression in the surety bond and the Magistrate / concerned court may obtain a copy of their Aadhar card or Bank Pass Book to ensure their identity;

(ii)the petitioner shall report before the respondent police daily at 10.30 a.m., for a period of one month and thereafter, as and when required for

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interrogation;

(iii)the petitioner shall not tamper with the evidence or witness either during investigation or trial;

(iv)the petitioner shall not abscond either during investigation or trial;

(v)On breach of any of the aforesaid conditions, the learned Magistrate / Trial Court is entitled to take appropriate action against the petitioner in accordance with law as if the conditions have been imposed and the petitioner is released on bail by the learned Magistrate / Trial Court himself as laid down by the Hon'ble Supreme Court in ***P.K.Shaji vs. State of Kerala [(2005)AIR SCW 5560];***

(vi)If the accused thereafter abscond, a fresh FIR can be registered under Section 269 BNS, 2023.

(K M S J)
15.10.2026

CSM

TO

1. The Judicial Magistrate No.III,
   Thoothukudi.

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K.MURALI SHANKAR,J

CSM

2. Do through
   The Chief Judicial Magistrate,
   Thoothukudi.

3. The Superintendent,
   District Jail,
   Perurani, Thoothukudi District.

4. The Inspector of Police,
   Sipcot Police Station,
   Thoothukudi District.

5. The Additional Public Prosecutor,
   Madurai Bench of Madras High Court,
   Madurai.

ORDER
IN
CRL OP(MD) No.23550 of 2026

Date : 15.10.2026